25LBCV00697 25LBCV00697

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 25LBCV00697 Hearing Date: July 31, 2026 Dept: S27

1. Motion
for Terminating Sanctions

a.
Procedural History

The parties appeared at an FSC on 5/18/26 and the Court specially set a hearing on a motion to dismiss for 6/16/26. Defendant filed papers in support of the motion on 6/01/26. The Court denied the motion on 6/16/26 for various reasons, including that it was not timely filed. The Court specially set a hearing on a motion for sanctions for 7/31/26.

Defendant never filed additional papers in support of any request for sanctions. The Court presumes the original 6/01/26 papers are intended to serve as the moving papers. On 7/20/26, Plaintiffs filed opposition to the motion. Defendant has not filed timely reply papers.

b.
Analysis

Defendant moves pursuant to CCP §128(a), Stephen Slesinger, Inc. v. Walt Disney Co. (2007) 155 Cal.App.4th 736, 763, CCP §583.410, and CCP §575.2. Slesinger, which interpreted §128(a), indicated dismissal pursuant to the court's inherent power is appropriate when there has been "deliberate and egregious misconduct." §583.410 permits dismissal for delay in prosecution "pursuant to this article," but §583.420 delineates the conditions that give rise to a delay in prosecution, none of which are present in this case. §575.2 permits local rules promulgated by counties to provide for dismissal for failure to comply with a court order, but makes clear that any penalty must be imposed on Counsel and not on the party if the noncompliance was the fault of the attorney.

While the Court finds Strategic Legal Practices' conduct in this and other cases unacceptable, the Court finds none of the cited code sections permit dismissal of the action. The motion to dismiss is therefore denied.

c.
Monetary Sanctions

Defendant also seeks monetary sanctions. It seeks such sanctions pursuant to CCP §§128.5, 177.5, and 575.2. §128.5(f)(1)(A) and (B) make clear that the motion for sanctions must be made separately from any other motion, and the moving papers must not be served on the opposing party until a "safe harbor" period of 21 days has passed and the opposing party has not withdrawn the offending pleading (in this case, the complaint). §177.5 permits the Court to impose sanctions in an amount not to exceed $1500 for any violation of a lawful court order done without substantial justification. The Court has been unable to locate any statutory or other power that permits it to order a party to make a settlement offer, and Defendant has provided no such authority. §575.2 simply permits the local county court to create a local rule governing imposition of sanctions; absent citation to any such rule, the request cannot be granted.

The motion for sanctions is denied. The Court harshly admonishes Plaintiff's attorney that the above-described conduct is unacceptable, and that if a future motion to dismiss is made in this or another case with citation to applicable authority, the Court will not hesitate to grant the motion.

2. Motion
for Judgment on the Pleadings

a.
Procedural History

On 6/17/26, Defendant filed this motion for judgment on the pleadings directed at Plaintiffs' entire complaint, contending it is barred by the statute of limitations. Defendant set the motion for hearing on 11/05/26. On 7/15/26, the Court rescheduled the hearing date to 7/28/26 and gave notice to all parties. To date, Plaintiffs have not filed opposition to the motion. On 7/28/26, the Court continued the hearing on the MJP to 7/31/26.

b.
Statute of Limitations

Defendant establishes Plaintiffs purchased the subject automobile on 1/08/19 and did not file suit until 5/01/25. Defendant also establishes Plaintiffs' complaint is devoid of any facts showing delayed discovery, estoppel, etc. Plaintiffs' complaint, at ¶¶23-24, merely alleges that the statute of limitations was tolled and/or otherwise extended, but there are no facts in support of this conclusion pled.

Commercial Code provides for a four-year statute of limitations for Song-Beverly Actions. CCP §338(d) provides for a three-year statute of limitations on a fraud claim.

Plaintiffs' complaint does not include any allegations concerning whether and when defects were first discovered, whether and when Plaintiffs took the vehicle in for servicing, what happened when the vehicle was presented to the dealership for servicing, etc. Plaintiffs must so plead, because the complaint appears to be barred by the statute of limitations, which gives rise to an obligation to plead specific facts showing the complaint is not time-barred. See Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 808. The motion for judgment on the pleadings is therefore granted.

c.
Additional Issues

Defendant moves on other grounds as well. The Court declines to rule on those grounds, as doing so is not necessary to a resolution of the merits of the motion.

d.
Leave to Amend

It is not up to the Court to figure out how the complaint can be amended to state a cause of action. Rather, the burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading. Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.

In light of the lack of opposition, the Court presumes Plaintiffs concede the complaint is deficient and cannot be cured. Leave to amend is therefore denied.

Defendant is ordered to give notice.